

TAB 10



Board of Education Report

File #: Rep-301-23/24, Version: 1

Authorization to Accept Five Million Dollars from Lulu's Place for the Benefit of the Baseball and Softball Fields at Westchester Enriched Sciences Magnets

June 4, 2024

Facilities Services Division

Action Proposed:

Authorize:

1. The acceptance of a \$5,000,000 donation ("Donation") from Lulu's Place, a California nonprofit public benefit corporation ("Donor") to be used exclusively to provide for the design and construction of capital improvements for the baseball and softball athletic fields at Westchester Enriched Sciences Magnets ("WESM");
2. The incorporation of the Donation and the associated capital improvements for the baseball and softball athletic fields into the WESM Field Upgrades with Natural Turf and Synthetic Track Project (Project #10374472); and
3. The Chief Facilities Executive and/or her designee(s) to execute reasonable instruments for the Donation including, but not limited to, a donation agreement.

Background:

Mr. Doug Kimmelman, President of the Kimmelman Family Foundation, is developing Lulu's Place, a \$150-million youth center to be built on a 35-acre site north of Los Angeles International Airport and directly across West 91st Street, south of the WESM campus. Lulu's Place will offer world-class facilities that bring together the powerful combination of academics, athletics, and wellness to support students and families in the community. Lulu's Place will include tennis courts, soccer fields, multipurpose fields, basketball courts, sand volleyball courts, a playground, a dog park, and other public recreation spaces. Lulu's Place will also include a learning lab on the adjacent St. Bernard High School campus that will be open to all area students.

Lulu's Place honors Mr. Kimmelman's late wife, Carol "Lulu" Kimmelman, who was a teacher at Los Angeles Unified's Raymond Avenue Elementary School in South Los Angeles. Mr. Kimmelman and their four children aspire for Lulu's Place to provide youth with equitable access to sports and education and become a national model.

Lulu's Place wishes to donate \$5 million to Los Angeles Unified. The use of the Donation is to be restricted to the design, construction, management, inspection, and related services and fees associated with the capital improvements to the WESM baseball and softball fields ("Field Improvements") consisting of:

- A. Refurbishing the decomposed granite infields;
- B. New scoreboards;

- C. New dugouts and batting cages;
- D. New backstops and protective netting;
- E. Overseeding of the grass fields;
- F. Portable bleachers; and
- G. Benches and signage.

Donor has also expressed a desire to occasionally use the parking lot at WESM accessible from 91st Street for events at Lulu's Place. Use of the parking lot is not a condition of the Donation. Rather Donor and Los Angeles Unified will cooperatively and in good faith work together to allow Donor to use the parking lot as permitted by the California Education Code and when not otherwise scheduled for use by the school. Use of the parking lot will be subject to Los Angeles Unified's fee in effect at the time of use and upon terms and conditions agreed to by the parties

The Board of Education ("Board") approved the WESM Field Upgrades with Natural Turf and Synthetic Track project definition ("Project") on March 12, 2024. The Donation will be incorporated into the Project and used for the Field Improvements. WESM is located in Region West and Board District 4 (Nick Melvoin).

Expected Outcomes:

Approve the acceptance of the Donation, the incorporation of the Donation into the Project, and the authorization to execute reasonable contracts and agreements.

Board Options and Consequences:

The Board may elect not to authorize the acceptance of the Donation, the incorporation of the Donation into the Project, and the execution of reasonable contracts and agreements. If the proposed action is not approved, the Donation will not be accepted and will not be used to construct capital improvements to the baseball and softball athletic fields at WESM for the benefit of students and the community.

Policy Implications:

The proposal does not impact Los Angeles Unified policy. It furthers implementation of the Modernization, Upgrade and Development of High School Athletic Facilities Board Resolution. The proposed action will advance the Los Angeles Unified 2022-2026 Strategic Plan Pillar 4 Operational Effectiveness Modernizing Infrastructure by constructing athletic field improvements at WESM.

Budget Impact:

There is no impact to General Fund or use of Bond Funds. However, the Project budget will be increased by \$5,000,000 to accommodate the additional funding and scope. The Donation provides one-time funding from the Donor.

Student Impact:

WESM students will benefit from utilizing the Donation to provide the opportunity for approximately 760 students to engage in athletic and other events on the upgraded fields.

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Equity Impact:

Not applicable.

Issues and Analysis:

The Donation is being offered by the Donor on the condition that the funds are used solely for capital improvements to the baseball and softball athletic fields at WESM. If authority to accept the funds is granted, Donor and Los Angeles Unified will negotiate and enter into an agreement for the disbursement and expenditure of the donated funds. Donor has also expressed a desire to occasionally use the parking lot at WESM accessible from 91st Street for events at Lulu's Place. Use of the parking lot is not a condition of the Donation. Rather Donor and Los Angeles Unified will cooperatively and in good faith work together to allow Donor to use the parking lot as permitted by the California Education Code and when not otherwise scheduled for use by the school. Use of the parking lot will be subject to Los Angeles Unified's fee in effect at the time of use and upon terms and conditions agreed to between the parties.

Attachments:

None

Informatives:

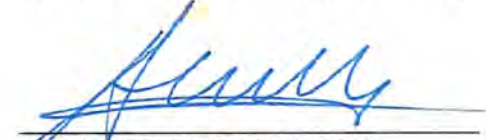
None

Submitted:

05/05/24

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RESPECTFULLY SUBMITTED,



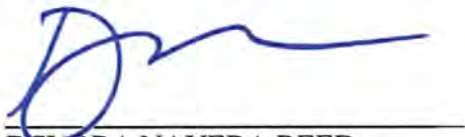
ALBERTO M. CARVALHO
Superintendent

APPROVED BY:



PEDRO SALCIDO
Deputy Superintendent,
Business Services and Operations

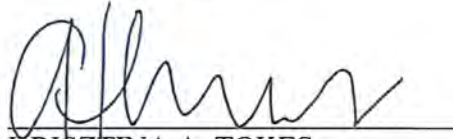
REVIEWED BY:



DEVORA NAVERA REED
General Counsel

✓ Approved as to form.

APPROVED BY:



KRISZTINA A. TOKES
Chief Facilities Executive
Facilities Services Division

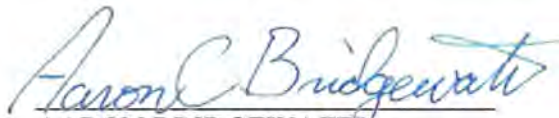
REVIEWED BY:



NOLBERTO DEGADILLO
Deputy Chief Business Officer, Finance

✓ Approved as to budget impact statement.

PRESENTED BY:



AARON BRIDGEWATER
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Facilities Services Division